



Responsibility for Justice

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CHAPTER

Four Four A Social Connection Model

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Abstract

This chapter proposes an alternative conception of responsibility called the social connection model of responsibility. The social connection model finds that all those who contribute by their actions to structural processes with some unjust outcomes share responsibility for the injustice. This responsibility is not primarily backward-looking, as the attribution of guilt or fault is, but rather primarily forward-looking. Being responsible in relation to structural injustice means that one has an obligation to join with others who share that responsibility in order to transform the structural processes to make their outcomes less unjust. The chapter contrasts the social connection model of responsibility with the conception usually applied in legal and moral discourse, called the liability model. While some people might think the best strategy for theorizing responsibility for structural injustice is to extend and adapt the liability model, there are problems with this approach. There are good practical as well as theoretical reasons for saying that responsibility in relation to structural injustice is a special kind of responsibility, rather than a variation on responsibility understood as guilt, blame, fault, or liability.

Keywords: [responsibility](#), [social connection model](#), [social injustice](#), [structural justice](#), [liability model](#), [guilt](#), [blame](#), [fault](#), [liability](#)

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We are now in a position to answer this book's guiding question: how shall agents, both individual and organizational, think about our responsibility in relation to structural injustice? The question harbors some puzzles and dilemmas. On the one hand, as I have argued, the very judgment that there is injustice implies some kind of responsibility. To judge a circumstance unjust implies that we understand it at least partly as humanly caused, and entails the claim that something should be done to rectify it. On the other hand, when the injustice is structural, there is no clear culprit to blame and therefore no agent clearly liable for rectification.

As I have explicated the idea in chapter 2, structural injustice is produced and reproduced by thousands or millions of persons usually acting within institutional rules and according to practices that most people regard as morally acceptable. A lack of availability of decent affordable housing for large numbers of people, for example, occurs as a normal aspect of most housing markets. The dynamics of these markets is affected by investment incentives, developers' imaginations, expertise, and financial capacity, cultural assumptions concerning housing preferences, and local planning policies, among other factors. Within these structural processes some people often do illegal or immoral things. Some may refuse to rent to blacks or perceived Muslims. Others may bribe city officials in order to obtain a zoning variance. While such illegal or immoral acts certainly contribute to structural outcomes, the people who engage in such acts are not the only perpetrators of the injustice. There are too many other people also involved.

p. 96 Practices of assigning responsibility in law and everyday moral life first try to locate "who dunnit"; for a person to be held responsible for a harm, we must be able to say that he or she caused it. Causal responsibility is not sufficient for finding an agent blameworthy or at fault, but it is usually necessary. There are important exceptions to this generalization. We find persons ↪ whose actions order or enable agents who directly cause harms, such as Eichmann's actions of organizing trains, blameworthy, and sometimes even more blameworthy than the persons who directly cause the harms. This class of exceptions only proves the rule: within standard frameworks of moral and legal responsibility, it is necessary to connect a person's deeds linearly to the harm for which we seek to assign responsibility.

The problem with structural injustice is that we cannot trace this kind of connection. It is not difficult to identify persons who contribute to structural processes. On the whole, however, it is not possible to identify how the actions of one particular individual, or even one particular collective agent, such as a firm, has directly produced harm to other specific individuals. When housing consumers want big front lawns, for example, and developers cater to this desire, satisfying these desires arguably helps inflate housing prices in a region. It would be incorrect to say, however, that the actions of investors in a subdivision with big lawns or the buyers of the homes have themselves caused the difficulty some lower-income people have in finding housing for which they will pay less than 40 percent of their income. Many other actions, institutional habits, and policies also contribute to the injustice these people suffer. The actions of particular persons do not contribute to injustice for other persons directly, moreover, but rather indirectly, collectively, and cumulatively through the production of structural constraints on the actions of many and privileged opportunities for some.

If we want to say that some people nevertheless bear responsibility for structural injustice, then we need a conception of responsibility different from the standard conception, which focuses on individual action and its unique relation to a harm. I propose such an alternative conception in this chapter, which I call a social connection model of responsibility. The social connection model finds that all those who contribute by their actions to structural processes with some unjust outcomes share responsibility for the injustice. This responsibility is not primarily backward-looking, as the attribution of guilt or fault is, but rather primarily forward-looking. Being responsible in relation to structural injustice means that one has an obligation to join with others who share that responsibility in order to transform the structural processes to make their outcomes less unjust.

p. 97 I will contrast the social connection model of responsibility with the conception usually applied in legal and moral discourse, ↪ which I call the liability model. While some people might think the best strategy for theorizing responsibility for structural injustice is to extend and adapt the liability model, I will suggest that there are problems with this approach. There are good practical as well as theoretical reasons, I will argue, for saying that responsibility in relation to structural injustice is a special kind of responsibility, rather than a variation on responsibility understood as guilt, blame, fault, or liability.

The Virtues and Limits of Liability

The most common model of assigning responsibility derives from legal reasoning to find guilt or fault for a harm. Within this idea of responsibility, one assigns responsibility to particular agents whose actions can be shown to be causally connected to the circumstances for which responsibility is sought. This agent can be a collective entity, such as a corporation, and when it is, that entity can be treated as a single agent for the purposes of assigning responsibility.¹ The actions found causally connected to the circumstances are shown to be voluntary and performed with adequate knowledge of the situation. If candidates for responsibility can successfully show that their action was not voluntary or that they were excusably ignorant, then their responsibility is usually mitigated, if not dissolved. When these conditions do exist, however, it is appropriate to blame the agents for the harmful outcomes. I refer to this general conceptualization of responsibility as the liability model.

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Conceptions of moral responsibility, both among scholars of ethics and in ordinary language, most often assume a liability model of responsibility. While people often distinguish between holding people morally responsible for a circumstance and regarding them as criminally or civilly liable in legal terms, their conception of responsibility is similar in form. To say that an agent is responsible means that they are blameworthy for an act or its outcome. The conditions for holding an agent morally responsible are similar to those of legal responsibility: we must be able to show that they are causally connected to the harm in question and that they acted voluntarily and with sufficient knowledge of the consequences.

Both criminal and tort law sometimes hold agents liable for a harm in ways that depart somewhat from this understanding. Attribution of moral responsibility without presumption of legal liability also sometimes departs from the concept in the following ways. Law contains a concept of culpable negligence, and a concept like this is sometimes used in moral ascription. It says that an agent is responsible for a harm not because of what they have done, but because of what they failed to do. This ascription is called culpable negligence, however, in order to restrict the scope of inactions properly judged blameworthy. A culpably negligent failure to act refers to the legitimate expectation that a person should act in specific ways, often because of a role that he or she occupies. A parent can be culpably negligent for failing to take care of a child, for example, as can a security guard for sleeping during a break-in.

A departure in tort law from the idea that an agent liable for a harm should be causally connected to it occurs in the idea of strict liability. Under strict liability, the law holds an agent liable for a harm even if the agent was not the cause of the harm and did not intend or was unable to control the outcome, such as when one person's property causes damage to another person's property.²

Under what I call the liability model of responsibility, I include all such practices of assigning responsibility under the law and in moral judgment that seek to identify liable parties for the purposes of sanctioning, punishing, or exacting compensation or redress. Despite their differences, these practices share an interest in identifying particular agents as *the* liable ones and are generally backward-looking in their purpose.

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A concept of responsibility as guilt, blame, or liability is indispensable for a legal system and for a sense of moral right that respects agents as individuals and expects them to behave in respectful ways toward others. When applying this model of responsibility, there should be clear rules of evidence, not only for demonstrating the causal connection between this agent and a harm, but also for evaluating the intentions, motives, and consequences of the actions. But the liability model of responsibility, I suggest, is inappropriate for assigning responsibility in relation to structural injustice. Let me illustrate this problem by return to Sandy's story from chapter 2.

If we want to say that Sandy herself is not responsible for living on the brink of homelessness, but also wish to say that she suffers injustice, then we are saying that *somebody* is responsible. We then wish to look for

someone to blame, or at least someone on whom the burden should lie to remedy the problem. In the real world of the housing industry, there is often reason to find fault with individuals and organizations and/or hold them liable. Landlords too often arbitrarily deny apartments to single mothers with children. Absentee owners of buildings too often fail to monitor whether or not their managers properly maintain them. The relationship between developers and government officials in many metropolitan areas is often laced with cronyism and graft.³

I constructed Sandy's story as told in chapter 2 to intentionally bracket such common wrongs, however, in order to highlight the fact that her unfortunate circumstances result primarily from a complex combination of actions and policies by individual, corporate, and government agents—actions and policies that most people consider normal and acceptable, or even necessary and good.

p. 100 Vast numbers of actors contribute to the processes that produce this outcome, many of them with little awareness of how their actions contribute. Landlords jump at a lucrative offer to sell the buildings they have had difficulty maintaining. Cities cultivate ↘ the developers who want to renovate them because they want to attract business investment and upgrade their image with bond investors. Young affluent professionals move back to the center of the city to be close to work and entertainment. Lower-income renters compete for units, contributing to patterns of housing demand that rebound on all of them in the form of higher rents. Each agent moves on their own interests within the existing legal and social norms, and their actions together contribute to the outcome that some people are displaced and have difficulty finding decent affordable housing. None ought to be *blamed* for that outcome, I am suggesting, because the specific actions of each cannot be causally disentangled from structural processes to trace a specific aspect of the outcome. Presumably none intended the outcome, moreover, and many regret it. On my view, this means not that they should not be found responsible, but that they ought to be held responsible in a different sense.

The primary reason that the liability model does not apply to issues of structural injustice is that structures are produced and reproduced by large numbers of people acting according to normally accepted rules and practices, and it is in the nature of such structural processes that their potentially harmful effects cannot be traced directly to any particular contributors to the process. I will argue later that the use of this model for conceptualizing responsibility for structural injustice is inappropriate, pragmatically, in political discussion, because it tends to make people defensive and engage in “blame switching.” Inspired by Hannah Arendt's suggestive notion, as discussed in chapter 3, of political responsibility as distinct from guilt, I propose a social connection model of responsibility specifically for thinking about responsibility in relation to structural injustice. In proposing this model, I do not aim to replace or reject the liability model. I am claiming instead that the liability model is appropriate in some contexts but not all.

Why, some might ask, can't the liability model be extended or refined to cover issues of structural injustice? After all, theories of collective responsibility under a liability model are well developed. Legal theory and practice, furthermore, have developed sophisticated theories of complicity or aiding and abetting, which attribute some responsibility to persons who help or enable or support others who do blameworthy things.

p. 101 People who aid others or whom in other ways we judge to be complicit in a wrong are ↘ thought co-responsible for the wrong, though not usually to the same degree as the direct perpetrator or the one or ones at fault. Wouldn't pursuing how theories of complicity might be extended to issues of structural injustice yield a simpler and more compelling account of responsibility than introducing a conception different from the one that is familiar to us under the liability model?

In anticipation of this objection, let me pause briefly to consider Christopher Kutz's theory of complicity,⁴ in particular his effort to extend it to issues like those I bring under the term “structural injustice.” I believe that Kutz's effort is unsatisfactory, and it is instructive to see why. His is the best effort I know of to extend the liability model in this direction. If the best effort under that model is not satisfactory, then we require another model.

Kutz seeks to theorize what complicity means, and what the grounds for considering persons complicit are, in the context of an organized collective action in which many people participate. He uses the Allied bombing of Dresden in World War II as an extended case. This constitutes a project in which thousands of people participate; many have different roles in the endeavor, some more important than others, and they perform different kinds of actions. While many people must successfully have flown airplanes and dropped bombs on buildings and other targets for the mission to have been accomplished, it is also true that the acts of some of the people who were part of the collective action may not be causally related to the burning of Dresden. For example, their bombs may not have gone off, or they may have hit the ground in a relatively harmless place. The bombing of Dresden, furthermore, is overdetermined. In the end more bombs fell than were needed to reduce large parts of the city to rubble. Thus some people's actions do not satisfy the "but for" condition often said to warrant the attribution of responsibility for a wrong. It should be the case that if I had not done what I did, then the harm would not have occurred, or would not have occurred to the same extent.

p. 102 Kutz counts on our intuition that everyone who participated in the mission to bomb Dresden is complicit in that wrong. His theory says that what makes people complicit in any collective ↴ action is the fact that each of them intends the goal of that collective action as the end of their own action. Each has the *participatory intent* to accomplish the joint mission. The pilot whose engine fails and who parachutes to the ground before reaching Dresden is just as complicit as the one who makes his target, on this account, because each participated in the intention to destroy the city of Dresden and took that goal as the purpose of his own action.

I think this is an excellent account of complicity in an endeavor where many people participate and coordinate their actions to bring about determinate results. In one chapter, Kutz extends his theory to cases of collectively caused harm in which those who participate are not coordinating and in which they do not intend the results. He refers to these sorts of cases as "unstructured collective harms." In the context of my discussion here this terminology may be confusing, because the sorts of cases that I refer to as "structural injustices" are cases of what Kutz calls "unstructured collective harms." For him these harms are "unstructured" because they are not the result of a single coordinated project. The primary example he uses is global climate change, as caused by the emission of fossil fuels into the earth's atmosphere. This is an "unstructured" collective harm in that it is caused by the aggregate effects of many people driving cars, using electricity generated by coal-fired power plants, and so on. While many of these people are engaged in coordinated collective action in the course of doing these things, none is engaged in a project of producing climate change. Similarly for me, while many people participate in the structural processes that produce some injustices, and they are often involved in some kind of coordinated action, most or all of them are not engaged in a collective project to make some people vulnerable to deprivation or domination. From the point of view of Kutz's theory of complicity, the social processes that produce global warming or a scarcity of affordable housing lack the participatory intent that he argues is the main reason for finding people responsible for a collectively produced outcome.

p. 103 Kutz nevertheless thinks his model of complicity can be adjusted to cover these sorts of collectively produced harms. Even in the absence of a shared commitment to a collective project, he argues, those who contribute to the harm by their actions have a quasi-participatory relationship to the outcome. The participation is quasi, he ↴ says, because there is no collective project toward which persons are coordinating their action. Instead, the individuals who contribute to greenhouse gas pollution (or processes that limit the availability of decent affordable housing)

share an objectively determinate and highly interdependent way of life. For the socioeconomic structures noted by the victims are neither self-originating nor self-sustaining. They emerge, rather, from unreflective confluences of habit and sentiment, tacit agreements upon, for example, the value of private transportation. These manifest themselves in myriad public policy choices and private behaviors. Indeed, to the extent that the offending socioeconomic structures are social, they must arise from the motivations of individual agents, for all social activity is individual activity.⁵

I agree with Kutz's description of the processes that produce pollution as structural, and I agree that structural processes arise from the actions of individuals. That fact does serve as a basis for connecting individual responsibility to structural harms. However, insofar as Kutz suggests that this ascription of responsibility is continuous with the theory of complicity in a collective project that he has offered, I think he is mistaken. I interpret his theory of complicity as coming under a liability model of responsibility. Those who are complicit with a harm are blameworthy in the same sense as those who have planned and directed it, though perhaps not to the same degree. Their participating in the enactment of the harm by virtue of things that they do is a necessary but, as I understand it, insufficient condition of finding that they are blameworthy. They are culpable because they understand the collective enterprise to which their actions contribute and have internalized that collective end as the end of their individual actions. On Kutz's own account, precisely these conditions are lacking in cases of collective harms produced by socioeconomic structures but without direct coordinated action. In the absence of an *intent* to produce the outcome, surely those who participate should not be found *guilty* in the same way that those who participate in a war crime are.

p. 104 The lesson to take from my objections, I suggest, is that responsibility in relation to structural injustice should not be thought of as an attenuated form of responsibility as complicity, which is itself an attenuated form of individualized criminal or tort liability. ↪ At the point when we consider issues of responsibility in relation to structural injustice, quantitative difference becomes qualitative difference. What we should seek is not a variation on a weaker form of liability, but rather a different conception of responsibility altogether.

Arendt's point in distinguishing guilt from political responsibility is to bring out such a difference in kind, rather than degree. To the extent that we participate in the ongoing operations of a society in which injustice occurs, we ought to be held responsible. This does not, however, make us guilty or blameworthy or directly liable for paying compensation to victims of harm. Responsibility in that liability sense should be reserved for persons who can be specifically identified as causing the harm, usually knowing what they are doing. I think Arendt is right that it is a bad idea to blur the conditions for saying that persons are guilty or at fault. It is often important to pin a wrong on someone who did something or was in the unique position to have prevented it. This means that we should conceptualize responsibility differently for the purposes of assigning responsibility for structural injustice.

The Social Connection Model

p. 105 In ordinary language we use the term "responsible" in several ways. One I have already discussed as paradigmatic of the liability model: to be responsible is to be guilty or at fault for having caused a harm and without valid excuses. We also say, however, that people have certain responsibilities by virtue of their social roles or positions, as when we say that a teacher has specific responsibilities, or we appeal to our responsibilities as citizens. In this meaning, finding responsible does not imply finding at fault or liable for a past wrong; rather, it refers to agents' carrying out activities in a morally appropriate way and seeing to it that certain outcomes obtain.⁶ What I propose as a social connection model of responsibility draws more on this second usage of the term "responsibility" than on the liability usage. It shares with the ↪ liability usage, however, a reference to causes of wrongs in the form of structural processes that produce injustice.

The social connection model of responsibility says that individuals bear responsibility for structural injustice because they contribute by their actions to the processes that produce unjust outcomes. Our responsibility derives from belonging together with others in a system of interdependent processes of cooperation and competition through which we seek benefits and aim to realize projects. Within these processes, each of us expects justice toward ourselves, and others can legitimately make claims of justice on us. All who dwell within the structures must take responsibility for remedying injustices they cause, though none is specifically liable for the harm in a legal sense. Responsibility in relation to injustice thus derives not from living under a

common constitution, but rather from participating in the diverse institutional processes that produce structural injustice. As I will discuss in chapter 5, in today's world many of these structural processes extend beyond nation-state boundaries to include globally dispersed persons.

I detail features of the social connection model of responsibility by contrasting it with the liability model. The social connection model does not isolate perpetrators. It brings background conditions under evaluation. Its main purpose for assigning responsibility is forward-looking. Responsibility under the social connection model is essentially shared. It can therefore be discharged only through collective action.

1. Not Isolating

p. 106 As Arendt emphasizes in distinguishing between guilt and responsibility, the purpose of finding guilt is to focus on what particular agents have done in their singularity. Similarly, in tort law the aim is to assign liability to particular agents as isolatable and identifiable. In general, the liability model of responsibility seeks to mark out and isolate those responsible, thereby distinguishing them from others, who by implication are not responsible. Such isolation of the one or ones liable from others who are not is an important aspect of legal responsibility in both criminal and tort law. The purposes of social practices of finding guilty, blaming, finding fault, or holding strictly liable are to focus on particular agents in order to sanction or demand compensation from them and them alone. It is important to the system of moral rules and legal accountability that all agents know ↪ that they may face accusation or be called to account as individual agents. Because they argue that organizations or collectives as well as individual persons can be blamed for harms, most accounts of collective responsibility also aim to isolate perpetrators in this way.

When harms result from the participation of thousands or millions of people in institutions and practices that produce injustice, on the other hand, such an isolating concept of responsibility is inadequate. Where there are structural injustices, finding that some people are guilty of perpetrating specific wrongful actions does not absolve others whose actions contribute to the outcomes from bearing responsibility in a different way. Suppose a landlord refuses to rent an apartment to Sandy because he worries that a single mother will have boyfriends over or be unable to pay the rent. Such discrimination is against the law and should be punished; such prejudicial attitudes certainly contribute to the processes that limit the availability of decent affordable housing, especially to single mothers. The structural injustice of being at risk for homelessness, however, cannot directly be traced to the discriminators; these actions, like hundreds of other actions by other actors, contribute to producing structural injustice. Where there are structural injustices, finding that some people are guilty of perpetrating specific wrongful actions does not absolve others whose actions contribute to the outcomes from bearing responsibility. In principle, moreover, structural injustice may be ongoing even when some of the participating actors have done nothing that existing practices of criminal, legal, or moral blame or fault-finding would identify as wrong. Those who participate by their actions in producing and reproducing structural injustice are usually minding their own business and acting within accepted norms and rules. They bear responsibility for unjust outcomes, which they may regret, without being specifically at fault. Thus finding that third parties bear responsibility, either in the sense that they have done an actionable harm or that they have contributed to unjust outcomes through their action within accepted institutional rules, does not absolve them (us) of responsibility as well.

2. Judging Background Conditions

p. 107 In a liability concept of responsibility, what counts as a wrong for which we seek a perpetrator, or a harm for which we seek to assign liability to make compensation, is generally conceived as a specific ↪ deviation from an acceptable baseline. We assume a normal set of background conditions that we consider morally acceptable, if not ideal. A crime or an actionable harm consists in a morally and often legally unacceptable deviation from this background structure.⁷ We usually conceive the process that brought about the harm as a discrete, bounded event that breaks away from the ongoing normal flow. Punishment, redress, or compensation aims to restore normality, or to “make whole,” in relation to the baseline circumstance.

A model of responsibility derived from an understanding of the mediated connection that agents have to structural injustices, on the other hand, does more than just evaluate harms that deviate from the normal and acceptable; it also often brings into question precisely the background conditions that ascriptions of blame or fault assume to be normal. When we judge that structural injustice exists, we are saying precisely that at least some of the normal and accepted background conditions of action are not morally acceptable. Most of us contribute to a greater or lesser degree to the production and reproduction of structural injustice precisely because we follow the accepted and expected rules and conventions of the communities and institutions in which we act. Usually we enact these conventions and practices in a habitual way, without explicit reflection and deliberation on the wider implications of what we are doing, having in the foreground of our consciousness and intention those immediate goals we want to achieve and the particular people with whom we need to interact to achieve them.

p. 108 If we contribute by such actions to the processes that produce structural injustice, we are responsible in relation to that injustice. Usually we should not be judged either morally or legally blameworthy or at fault for it, however, for several reasons. We do not usually take the outcome as the goal of our action, even when we can predict it as the aggregate result. We often have reasons to think that acting within these accepted rules and practices, furthermore, is positively virtuous or useful; it requires a wider and ↪ longer-run reflective point of view to understand how the many people who act within these accepted rules and practices interact in complex ways to produce the outcomes that many agree are unjust. We sometimes believe with good reason, finally, that our options to do otherwise are constrained by the very same structures to which we contribute.

Let us consider the housing example again. In the United States, the housing choices of parents with school-age children are often guided by the reputation of the public schools in different municipalities and neighborhoods. Many parents think it would be irrational and unfair to their children to choose housing in a neighborhood whose schools are overcrowded or poorly equipped, score poorly on standardized test measures, or are reputed to be undesirable in other ways. Many realize that they contribute to inflating housing prices in neighborhoods with desirable schools when they bid on houses in them, but they say they don't have any other option. This dynamic arguably contributes to inequality in schools between neighborhoods and districts, moreover, which, to the extent that it produces inadequate public schooling for some children and high-quality schooling for others, should be judged unjust. Housing consumers may contribute to this injustice by choosing what they hope is the best for their children in the belief that others are doing the same. Some of them may understand that the process helps produce both housing and schooling injustice but believe that because they are powerless to change that process on their own, they must go along with it.

3. More Forward-Looking Than Backward-Looking

Any attribution of responsibility carries plural temporalities. Thus both the liability and social connection models refer both to the past and the future. They differ, however, in temporal emphasis and priority. When judges, legislators, or legal theories consider certain tort harms, for example, they sometimes look to set rules of fault-finding for future litigation. Some criminal punishments and civil sanctions are future-oriented insofar as they intend to deter the acts they sanction. The primary purpose of practices of blame, guilt-finding, or fault-finding, however, is backward-looking. The harm or circumstances for which we seek to hold agents responsible is usually an isolatable action or event that has reached a terminus: the robbery has taken place, or an oil tanker has spilled its contents on the beach. As noted above, the primary purpose of assigning responsibility under this model is to identify the specific culprits or liable parties who should make restitution for the harm.

The primary emphasis of the social connection model, on the other hand, is forward-looking. We seek to assign responsibility for structural social injustice that has existed recently, is ongoing, and is likely to persist unless social processes change. Because the particular causal relationship of the actions of specific individuals or organizations to structural outcomes is not possible to trace, there is no point in trying to seek redress from only and all those who have contributed to the outcome, and in proportion to their contribution. The injustices produced through structures have not reached a terminus, but rather are ongoing. The point is not to compensate for the past, but for all who contribute to processes producing unjust outcomes to work to transform those processes.⁸

This project does need to look backward in one respect. Understanding how structural processes produce and reproduce injustice requires having an account of how they have come about and operated in the past coming up to the present. Having such a backward-looking account also helps those of us who participate in those processes understand our role in them. The purpose of such backward-looking accounts, however, is not to praise or to blame, but to help all of us see relationships between particular actions, practices, and policies, on the one hand, and structural outcomes, on the other.

4. Shared Responsibility

From the point that the social connection model differs from the liability model in that it does not isolate those liable in ways that implicitly absolve others, it follows that all those who contribute by their actions to the structural processes that produce injustice share responsibility for those harms. As I understand it, a shared responsibility is a responsibility I *personally* bear, but I do not bear it alone. I bear it in the awareness that others bear it with me; acknowledgment of my responsibility is also acknowledgment of the inchoate collective of which I am a part, which together produces injustice. The ground of my responsibility lies in the fact that I participate in the structural processes that have unjust outcomes. These processes are ongoing and ought to be transformed so that they are less unjust. Thus I share with others the responsibility to transform these processes to reduce and eliminate the injustice they cause. My responsibility is essentially shared with others because the harms are produced by many of us acting together within accepted institutions and practices, and because it is not possible for any of us to identify just what in our own actions results in which aspects of the injustice that particular individuals suffer.

In thinking about shared responsibility, I am indebted to Larry May's theory.⁹ According to May, the concept of shared responsibility is distinct from the concept of collective responsibility in that the former is a distributed responsibility, whereas the latter is not. A collective of persons, such as a corporation, might be said to be responsible for a state of affairs without any of its constituent individuals being determinately responsible for it. Shared responsibility, on the other hand, is a personal responsibility for outcomes or the risks of harmful outcomes, produced by a group of persons. Each is personally responsible for the outcome in a partial way,

since he or she alone does not produce the outcomes; the specific part that each plays in producing the outcome cannot be isolated and identified, however, and thus the responsibility is essentially shared.

May's account conceptualizes a general notion of shared responsibility, under which several specific forms might fall. The shared responsibility in relation to structural injustice that I describe here is one of those forms. Although May gestures toward this sort of shared responsibility, the core of May's theory does not have structural injustices in mind. His primary examples concern particular time-determinate harms perpetrated by identifiable persons in the context of social groups. He focuses his theory on how members of a community in which a person commits a wrong, such as a hate crime, often share attitudes that contribute to the perpetration of such a crime by harboring the same kind of hate as the perpetrator, or condoning it, or failing explicitly to oppose it. His innovation is to suggest that for some harms not only are perpetrators responsible in the sense of being guilty, but some others in the surrounding community are responsible in a different sense because they share attitudes and dispositions with the perpetrators.

Shared responsibility in relation to structural injustice differs from May's conception in a few important ways. First, on the whole, the wrongs for which May seeks to assign responsibility fit a liability model more than not. He presents them as wrongs that deviate from a baseline and have reached a terminus. Thus May's application of the idea of shared responsibility is more backward-looking than forward-looking.

Second, as in Arendt's account, which I analyzed in chapter 3, the wrongs with which May is concerned have identifiable perpetrators, who are guilty; the idea of shared responsibility applies to others who are not guilty of the wrongs but have attitudes similar to the perpetrators that help create a climate that allows or encourages harm. Shared responsibility in relation to structural injustice, on the other hand, as I have indicated, consists in responsibility for normal and ongoing processes through action more than attitude.

5. Discharged Only through Collective Action

A final feature of the social connection model that distinguishes it from the liability model of responsibility is that the forward-looking responsibility can be discharged only by joining with others in collective action. This feature follows from the essentially shared nature of the responsibility. Thousands or even millions of agents contribute by our actions in particular institutional contexts to the processes that produce unjust outcomes. Our forward-looking responsibility consists in changing the institutions and processes so that their outcomes will be less unjust. No one of us can do this on our own. As a homeowner in the metropolitan area where Sandy lives, I cannot act alone to change property values or the incentive structure that makes condominium conversion so attractive to developers. Most of us are objectively constrained by the rules, norms, and material effects of structural processes when we try to act alone. These processes can be altered only if many actors from diverse positions within the social structures work together to intervene in them to try to produce other outcomes.

Thus we can come around to Arendt's idea that this is a specifically *political* responsibility, as distinct from privately moral or juridical. Taking responsibility for structural injustice under this model involves joining with others to organize collective action to reform the structures. Most fundamentally, what I mean by "politics" here is public communicative engagement with others for the sake of organizing our relationships and coordinating our actions most justly. Discharging my responsibility in relation to the structural injustice of homelessness might involve, then, my trying to persuade others that this threat to well-being is a matter of injustice rather than misfortune and that we participate together in the processes that cause it. We then would enjoin one another to work on our collective relationships and try to transform the necessary practices.

Politics in this sense often includes government action, but is not reducible to it. Contemporary theories of justice, along with much popular opinion, tend to assume that remedy for injustice is the responsibility of a particular agent, the state, and that the responsibility of citizens is to make claims upon government to bring

about justice. It is often true that the best or only way for social actors to organize collective action to redress injustice is by means of state institutions.¹⁰ However, we ought to view the coercive and bureaucratic institutions of government as mediated instruments for the coordinated action of those who share responsibility for structures, rather than as distinct actors independent of us. Government policy to promote social justice usually requires the active support of communities in order to be effective.

Those who share responsibility for structural injustice may also find ways of making social change, moreover, through collective action in civil society independent of or as a supplement to state policies and programs. For example, for several decades a growing urban land trust movement led by private nonprofit organizations has succeeded in keeping some housing using affordable through limited equity arrangements, even in the context of otherwise “hot” housing markets.¹¹

p. 113 An important corollary of the idea that responsibility in relation to structural injustice is shared among all those who contribute to the processes that produce it is that many of those properly thought to be victims of injustice nevertheless share responsibility for it. On the liability model of responsibility, blaming those who claim to be victims of injustice usually functions to absolve others of responsibility for their plight. In the social connection model, however, those who can properly be argued to be victims of structural injustice also can be called to a responsibility they share with others to engage in actions directed at transforming those structures. Indeed, on some issues those who might be argued to be in less advantaged positions within structures perhaps should take the lead in organizing and proposing remedies for injustice, because their interests, it might be argued, are most acutely at stake. Their social positions, moreover, offer victims of injustice a unique understanding of the nature of the problems and the likely effects of policies and actions proposed by others situated in more powerful and privileged positions. In the next chapter I will elaborate on this point.

Resentment and Defensiveness in Politics

So far in this chapter I have argued that the liability model does not work well conceptually for assigning responsibility in relation to structural injustice, and I have proposed a different conception of responsibility that is forward-looking and shared. Responsibility based in social connection is ultimately political responsibility inasmuch as discharging the responsibility involves joining with others to determine forms of collective action that can transform the structures so that they will be less unjust.

Saying that the responsibility is political in this sense does not end the matter, however, but opens another discussion. Politics motivated by a shared responsibility to undermine injustice involves discussion and debate about alternative courses of action, how they should be implemented, and what their likely consequences will be. Within such debates, as in most political debates, we can expect conflict and disagreement. I end this chapter by supplementing my argument concerning the conceptual and normative limitations of a blame- or fault-oriented language in political discourse. These are more rhetorical and practical limitations than philosophical ones. The language of blame in political debates, I suggest, often impedes discussion that will end in collective action, because it expresses a spirit of resentment, produces defensiveness, or focuses people more on themselves than on the social relations they should be trying to change.

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Political theorists such as William Connolly, Wendy Brown, and Bonnie Honig suggest that public reactions to social problems and political events often appear animated by a spirit of resentment.¹² People undergoing frustration of their plans or undeserved suffering turn their unhappiness outward and seek someone to blame who in turn might suffer in compensation. Or others, who may think themselves luckier, nevertheless become compassionately angry about the bad situation that others are forced to endure, and their reaction is also to find some agents on whom to pin blame and whose punishment might at least give catharsis for their indignation.

Each of these writers press into the service of political criticism Friedrich Nietzsche's analysis of *ressentiment* as a dialectic of Western morality. A spirit of resentment animates what Nietzsche calls slave morality, a morality with the complexity of an inner life that can hurt and suffer and then turns outward as a means of responding to the hurt. Slave morality seeks to find the powerful agents outside who cause evil; creators of slave morality try to exert a counterpower over these wrongdoers through disciplines of guilt, punishment, and conscience:

For every sufferer instinctively seeks a cause for his suffering; more specifically...a *guilty* agent who is susceptible to suffering—in short, some living thing upon which he can, on some pretext or other, vent his affects, actually or in effigy: for the venting of his affects represents the greatest attempt on the part of the suffering to win relief, *anesthesia*—the narcotic he cannot help desiring to deaden pain of any kind.¹³

p. 115 Nietzsche does not simply criticize or reject the impulses of modern morality that make judgments of blame, seek to attach guilt, and invoke a need to *pay* for the wrongful deed through the counter-hurt of punishment. He says that this morality created human interiority, an ability to hold events in memory over time, and ultimately the strength of a sovereign subject with a *sense* of responsibility. To be stuck in a spirit of *ressentiment*, however, leads to nihilism. In the end it is unrealistic and mean-spirited to seek equivalence for every harm that must come from the flesh next to someone's heart:

It was rather out of the most rudimentary form of personal legal rights that the budding sense of exchange, contract, guilt, right, obligation, settlement, first *transferred* itself to the coarsest and most elementary social complexes (in their relations with other similar complexes), together with the custom of comparing, measuring, and calculating power against power.¹⁴

Responsible selves do need depth, sensitivity, and long memories, but ultimately a spirit of resentment allows those who lay blame to wallow in the past: “they tear open their oldest wounds, they bleed from long-healed scars.”¹⁵ A more expansive spirit will affirm that equivalence cannot be found for every harm and that going forward into a transformed future sustains greater power than reinscribing the relationships of the past.

We need not accept Connolly's sweeping claims about how secularization and globalization produce tendencies toward resentment in contemporary politics, nor Brown's focus on so-called “identity politics” as the particular seat of this problem, to agree that a spirit of resentment is often problematic in politics. I do not want to generalize this claim here. As I have said above, I do not deny the appropriateness of practices of blame and fault-finding in many legal and social situations. Such practices arguably are even appropriate in some political contexts—where a public official has made a disastrous decision without proper information and deliberation, for example, or when actions producing a crime come through a bureaucratic chain of command. All I wish to argue here is that practices of blame and fault-finding, and the spirit of resentment that often animates them, are usually unproductive in politics where the harms are a repeated product of structural social processes.

A blame language can be inappropriate and unproductive in the context of issues of structural injustice because it tends to divide people between powerful wrongdoers and those who are innocent, whether as victims or as bystanders. This often oversimplifies the causes of injustice, and renders most people passive or comparatively unable to help remedy the problem. A rhetoric of blame in politics often seeks to identify one or more particularly powerful actors who have caused the problems, often some public officials.

Sometimes this is appropriate. Thousands of people in the United States today are homeless or vulnerable to homelessness, for example, because the U.S. Housing and Urban Development agency decided in the mid-1990s, under a program called Hope VI, to demolish many public housing units across the country. They promised that people displaced by this program would be resettled in other government-subsidized affordable units, and some of them have been. Although experts might disagree on how many have not been, it is pretty

clear that many have not found new government-sponsored accommodations, because housing certificates have been cut and fewer publicly subsidized units have been or will be constructed than was originally promised.¹⁶ It is plausible to find the Hope VI decision-makers blameworthy for the circumstances in which these former public housing residents find themselves, as well as those who decided not to fund the building and subsidizing of affordable housing specifically for them.

p. 117 Even this sort of action and its consequences, however, enters structural processes in a way that implicates many actors who are not plausibly to blame for the situation of specific individuals. After the demolition of public housing projects was under way, the actions of many public officials and employees of private organizations arguably contributed to the problem of the lack of affordable units, and the market price of housing. It is appropriate to criticize processes of housing development and marketing that ↵ fail to give access to decent housing that people can afford, in this wider and complex system, but if we seek a few powerful actors to blame, we will let many ordinary actors doing their jobs off the hook. A public discourse of blame then oversimplifies, failing to develop a public understanding of the actions and practices whose consequences produce injustice. The power of some actors is improperly inflated, and that of many others is ignored.

Rhetorics of blame in the public discussion of social problems, furthermore, usually produce defensiveness and unproductive blame-switching. People who perceive themselves being blamed for wrongs that some people endure usually react defensively. Under a liability model of responsibility, being defensive in response to accusation is a natural and appropriate reaction. The logic of blame says that those to whom it is appropriately applied bear a singular responsibility for events or circumstances, even as a group, by virtue of their particular actions and the unique relations of those actions or inactions to the outcome for which some seek those who are blameworthy. Our legal and moral practices of blaming and finding fault allow the accused to answer, and to provide evidence, if he or she can, of the fact that his or her actions did not cause the harms, or to explain the valid excuses he or she has for not being blamed.

Defensiveness in response to accusation in political contexts where the harms or wrongs in question involve large-scale and long-term social structural processes, however, is usually unproductive for several reasons. First, it focuses debate on the past, rather than on what can be changed in the present. Blame and defensive response, second, divides people too much, creating mistrust where motivation to cooperate is required. The most common response to the accusation that one is to blame for an event or circumstance, furthermore, is to turn the accusation on to others. A round-robin “blame game” often ensues, with one actor after another being blamed and defending herself by throwing blame on to another. In contexts of structural injustice such blame-switching is particularly easy because others in fact *do* participate by their actions in the processes that produce unjust outcomes. It is difficult to make blame “stick” to anyone in particular, because almost everyone is involved. The round-robin discourse then paralyzes efforts to address the problems in a forward-looking way, because we are waiting to isolate the parties who should pay for a remedy. In the next chapter I will suggest that a more productive ↵ approach is to accept that we share responsibility and to divide responsibility in respect to transformative tasks.

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Let me call attention to one final problem with rhetorics of blame in political debates about injustices. Not everyone blamed necessarily reacts defensively or attempts to place blame on others. Sometimes people admit that they are blameworthy or guilty or at fault. Even when this occurs, however, it can be unproductive for the project of getting people together to do something about the problem, because people become more focused on themselves, their past actions, the state of their souls and their character, than on the structures that require change. We who admit that we have been at fault in producing or failing to prevent injustice make our confessions and examine ourselves for signs of callousness or malice. Such self-indulgence can distract us from discussing more objectively how social structures operate, how our actions contribute to them, and what can be done to change them.

The social connection conception of responsibility that I have articulated above offers means of holding ourselves and others responsible in politics in a way that avoids appeals to blame, guilt, or fault. If we listen, I think that we can hear appeals to something like such a conception of responsibility voiced in political contexts even now. In the next chapter I will focus on one such discussion, in the anti-sweatshop movement. Public exchanges about social and economic problems, and policies to address them, can be more successful, I am suggesting, if we develop rhetorics of responsibility that are specifically political and that have fewer echoes of moralistic or juridical language. Let me conclude this chapter by making brief reference to some of Jacques Derrida's gestures toward such a language of political responsibility, especially as suggested by passages in *Politics of Friendship*.

Derrida moves beyond a critique of the spirit of *ressentiment* and takes up Nietzsche's recommendation for a present and future orientation toward other people and to history. In Derrida's text this orientation arrives in the term "perhaps," which Derrida excavates as both noun and adverb:

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For to love friendship, it is not enough to know how to bear the other in mourning; one must love the future. And there is no more just category for the future than that of the "perhaps." Such a thought conjoins friendship, the future, and the *perhaps* ↪ to open on to the coming of what comes—that is to say, necessarily in the regime of a possible whose possibilization must prevail over the impossible. For a possible that would be possible (non-impossible), a possible surely and certainly possible, accessible in advance, would be a poor possible, a futureless possible, a possible already *set aside*, so to speak, life-assured.¹⁷

Derrida reads Nietzsche as installing a notion of responsibility "beyond good and evil," beyond the sense of equivalence and repayment of debt that he says we inherit from the Western tradition. This is a notion of responsibility for the future, a responsibility each person has alone and also has together with others: "I must answer for myself or before myself by answering for us and before us. I/we must answer for the present we for and before the we of the future, while presently addressing myself to you, and inviting you to join up with this 'us' of which you are already but not yet a member."¹⁸

Derrida's discussion of responsibility carries much of Levinas within it. Just speaking to another announces a responsibility to others.¹⁹ Although for many philosophers a free subject is the origin of responsibility, on a Levinasian/Derridian conception, responsibility is prior to and ground for freedom. "This responsibility that assigns freedom to us *without leaving it with us*, as it were—we see it coming from the other."²⁰

I do not intend to do a thorough reading of Derrida's text, or even a "true" one. Here I will simply say what this idea of the "perhaps" suggests to me that is relevant to my argument in this chapter, and what I understand as this appeal to a different kind of friendship for politics.

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In *Politics of Friendship*, as in some other texts,²¹ Derrida reacts critically to an understanding of political community followed by ↪ many philosophers in the Western tradition, one that invokes the idea of a "brotherhood" to describe the ties of sentiment and obligation that members of a polity ought to have to one another. Political friendship as invoked by an appeal to brotherhood rests on homogeneity, a denial of difference—especially sexual difference, but by implication all personal and social difference that might produce asymmetrical experiences in people who seek fellow-feeling in politics. One project of Derrida's book is to reach toward another meaning of political friendship.

I will call such an alternative meaning "solidarity." As a term and a concept, solidarity need not connote homogeneity or symmetry among those in relation. Some people use the term to imply identification with others or the unity of a group, but such usages can and should be challenged. As I am understanding it, solidarity is a relationship among separate and dissimilar actors who decide to stand together, for one another. Moreover, unlike brotherhood, which appeals to a natural origin in the unspoken mother, already there to be

counted on, solidarity must always be *forged* and *reforged*. Solidarity is firm but fragile. It looks to the future because it must constantly be renewed.

Thus political friendship understood as solidarity reads the idea of the “perhaps.” People who understand themselves in solidarity with close and distant others aim to work together to improve the state of well-being of themselves and/or others. They take an active approach to history, which means they do not accept the past as determining the present and the future. Rather than take existing social structures and relations as what they are, as given, they take them as *possibilities*—*perhaps* things can be improved. This active stance opens to a future that can be made, but is risky and uncertain. Let us try together to alter the social processes that we understand produce injustices, and *perhaps* we will have some success. People in solidarity for the sake of justice are determined to improve social relations, but they are also tentative and humble. Solidarity, inspired and tempered by the perhaps, is thus a call to responsibility:

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But if *presently* there is no friend, let us act so that henceforth there will be friends of this “sovereign master friendship.” This is what I call you to; answer my call, this is our responsibility. ↪ Friendship is never a present given, it belongs to the experience of expectation, promise, or engagement. Its discourse is that of prayer, it inaugurates, but reports nothing, it is not satisfied with what is, it moves out to this place where a responsibility opens up a future.²²

The sort of solidarity I am invoking is a relationship among many people who recognize and take up a shared responsibility in relation to the social institutions and practices they enact and support, to make them just. This solidarity is an ideal, a promise, and an engagement.

Derrida reflects on the root meanings of responsibility as quite different from being an isolatable cause of a harm, and distant from metaphors of equivalence and indebtedness. These are meanings that carve out the core of *response*: to answer for, to respond to, and to answer before.

Responsibility is always personal in that each must answer for himself or herself. However, the imperative to answer for oneself presumes a mediated structure of this self, that is, that I explain myself because I am already aware of myself as in relation to others, who call for a response from me. Thus answering qua responding to the other is even more originary than answering for myself. Relation to the other is prior, that is, to my self: “One first responds to the other: the question, the request, the prayer, the apostrophe, the call, the greeting or the sign, the adieu of the other.”²³

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After responding to the other with an answer for myself, there is the more generalized modality of answering before. Derrida interprets this as a move to institutions: “One answers before the law, a court, a jury, an agency authorized to represent the other legitimately, in the institutional form of a moral, juridical, political community.”²⁴ This juridico-political image is certainly an instance of answering before. Under a social connection model of responsibility for justice, however, as I have suggested, we should not generally bring people before a formal hearing or court to answer for themselves. This does not mean that there are ↪ no practices about which we should answer before a political body for our actions and inactions. People who understand that they share responsibility in relation to injustice and justice call on one another to answer before a public. The political process consists in the constitution of a public in which members raise problems and issues and demand of one another actions to address them.

Notes

1. Peter French, *Collective and Corporate Responsibility* (New York: Columbia University Press, 1984).
2. See, for example, Tony Honore, “Responsibility and Luck: The Moral Basis of Strict Liability,” in *Responsibility and Fault* (Oxford: Oxford University Press, 1999), 14–40.

3. In an essay discussing responsibility-shifting strategies, Thomas Pogge tells the story of a landlord who displaces tenants through a condo conversion, as an example of an unjust action which I construe him as saying is blameworthy on a liability model. See "Loopholes in Moralities," in Pogge, *World Poverty and Human Rights: Cosmopolitan Responsibilities and Reforms* (Cambridge: Polity Press, 2002), especially 77–80. No doubt some landlord behavior of this sort falls into a category like discrimination or corruption, something that goes beyond the bounds of institutionally acceptable rules of fair play. The intent of his example is different from the one I offered at the beginning of this essay, however, precisely on the question of whether we properly construe the landlord as individually culpable. Sometimes, I am suggesting, the responsibility is not culpability, but rather participation with others in structural processes that produce injustice.
4. Christopher Kutz, *Complicity: Ethics and Law for a Collective Age* (Cambridge: Cambridge University Press, 2000) [10.1017/CBO9780511663758](https://doi.org/10.1017/CBO9780511663758).
5. Kutz, *Complicity*, 188.
6. Henry S. Richardson, "Institutionally Divided Moral Responsibility," in Ellen Frankel Paul, Fred D. Miller, Jr., and Jeffrey Paul, eds., *Responsibility* (Cambridge: Cambridge University Press, 1999), 218–249.
7. See George Fletcher's discussion of the way that the assignment of criminal liability must distinguish between foregrounded deviations from background conditions assumed as normal, and the background conditions themselves. Fletcher, *Basic Concepts of Criminal Law* (Oxford: Oxford University Press, 1999), 69–70.
8. See Hans Jonas, *The Imperative of Responsibility: In Search of an Ethics for the Technological Age* (Chicago: University of Chicago Press, 1984), 90–120.
9. Larry May, *Sharing Responsibility* (Chicago: University of Chicago Press, 1992).
10. See Robert Goodin, "The State as a Moral Agent," in Goodin, *Utilitarianism as a Public Philosophy* (Cambridge: Cambridge University Press, 1995), 28–46 [10.1017/CBO9780511625053.003](https://doi.org/10.1017/CBO9780511625053.003).
11. See Thad Williamson, David Imbroscio, and Gar Alperovitz, *Making a Place for Community: Local Democracy in a Global Era* (New York: Routledge, 2002).
12. See William E. Connolly, *Identity/Difference: Democratic Negotiations of Political Paradox* (Minneapolis: University of Minnesota Press, 1991); Wendy Brown, *States of Injury: Power and Freedom in Late Modernity* (Princeton: Princeton University Press, 1995); and Bonnie Honig, *Political Theory and the Displacement of Politics* (Ithaca: Cornell University Press, 1993).
13. Friedrich Nietzsche, *On the Genealogy of Morals*, trans. Walter Kaufmann (New York: Vintage Books, 1967), 127.
14. Nietzsche, *On the Genealogy of Morals*, 70.
15. Nietzsche, *On the Genealogy of Morals*, 127–128.
16. See Larry Bennett, Janet L. Smith, and Patricia A. Wright, eds., *Where Are Poor People to Live? Transforming Public Housing Communities* (Armonk, NY: M. E. Sharpe, 2006).
17. Jacques Derrida, *Politics of Friendship*, trans. George Collins (London: Verso Press, 1997), 29.
18. Derrida, *Politics of Friendship*, 37.
19. Emmanuel Levinas, *Totality and Infinity: An Essay on Exteriority*, trans. Alphonso Lingis (Pittsburgh: Duquesne University Press, 1969).
20. Derrida, *Politics of Friendship*, 231–232.
21. For example, Jacques Derrida, *Of Hospitality: Anne Dufourmantelle Invites Jacques Derrida to Respond*, trans. Rachel Bowlby (Stanford: Stanford University Press, 2000).
22. Derrida, *Politics of Friendship*, 236.
23. Derrida, *Politics of Friendship*, 251.
24. Derrida, *Politics of Friendship*, 252.